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Features of an Islamic State

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FEATURES OF AN ISLAMIC STATE

- Allah's sovereignty v/s people's authority
- Khilafat or vicegerency v/s kinship
- *Shura* as binding for all
- State responsible for implementation of Islamic legal, economic, social and educational system
- Welfare of people
- Legal equality ('*adl* ') and protection of human rights



OBJECTIVES OF LECTURE

- To know about an Islamic state.
- To describe sovereignty of Almighty Allah and its need in the affairs of state.
- To highlight the importance of consultation.
- To know about the responsibilities of state, including welfare for people, justice and protection of human rights.



What is an Islamic state?

Definition of State:

It is an organized society governed and ruled by a high authority with the mutual understanding of ruling and obeying from the both side. The mere existence of settled obedience to a superior, coercive force is all that is required.

Elements of Political Science by Stephen Leacock, pg:15

The basic and unique features of an Islamic state are given below;

- Complete Sovereignty to only Allah Al-Mighty Alone
- Supreme authority must be the teachings of Holy Quran and Sunnah
- Consultation an all affairs of state
- An ideological state: . It does not discriminate on the grounds of color, race, language, or ethnicity

Islami Nizam e hayat, prof. Khursheed, V3, pg:166



Allah's sovereignty and people's authority

Allah Al-Mighty is the only creator, sustainer and master of the universe, thus he has the only right to rule and govern in all the spheres of human life.

﴿أَلَا لَهُ الْخَلْقُ وَالْأَمْرُ تَبَارَكَ اللَّهُ رَبُّ الْعَالَمِينَ﴾ سورة الأعراف: 54.

Lo! His is the creation and His is the command.⁴² Blessed is Allah,⁴³ the Lord of the universe.

﴿إِنِ الْحُكْمُ إِلَّا لِلَّهِ أَمَرَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ ذَلِكَ الدِّينُ الْقَيِّمُ﴾ سورة يوسف: 54

All authority to govern rests only with Allah. He has commanded that you serve none but Him. This is the Right Way of life...



Allah's sovereignty and people's authority

Role of Shari'ah as the Supreme law

﴿وَمَنْ لَمْ يَحْكَمْ بِمَا أَنْزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ﴾ سورة المائدة: 44.

Those who do not judge by what Allah has revealed are indeed the unbelievers.

قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «لَا طَاعَةَ لِمَخْلُوقٍ فِي مَعْصِيَةِ الْخَالِقِ». المعجم الكبير للطبراني. (381)

There is no obedience to the creation (if it entails) the disobedience of the Creator.



Allah's sovereignty and people's authority

Order of Obedience in Islamic State

﴿يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا﴾ سورة النساء: 59.

“O you who believe in Allah and obey the Messenger and those charged with authority among you; if you differ in anything among yourselves, refer it to Allah and His Messenger, if you do believe in Allah and the Last Day. That is best and most suitable for final determination”.



The ayah elucidates five constitutional points

- 1) That obedience to Allah and His Messenger is above all other obedience.
- 2) The obedience to those in authority is subject to their obedience to Allah and His Prophet (PBUH).
- 3) The head of State must be from amongst the believers.
- 4) That it is possible to differ with government functionaries and rulers.
- 5) That in case of disputes final authority to decide remains *shari'ah*, the word of Allah and the Prophet.

Tafseer: Tafheemulquran, Syed Moududi, vol I, pg:363.



Khilafat or vicegerency v/s kinship

When Allah created human, Allah decided to make them His deputies (caliphs) on Earth. As stated in the Holy Quran:

﴿وَإِذْ قَالَ رَبُّكَ لِلْمَلَائِكَةِ إِنِّي جَاعِلٌ فِي الْأَرْضِ خَلِيفَةً قَالُوا أَتَجْعَلُ فِيهَا مَنْ يُفْسِدُ فِيهَا وَيَسْفِكُ الدِّمَاءَ وَنَحْنُ نُسَبِّحُ بِحَمْدِكَ وَنُقَدِّسُ لَكَ قَالَ إِنِّي أَعْلَمُ مَا لَا تَعْلَمُونَ﴾ سورة البقرة: 30.

Just think when your Lord said to the angels: “Lo! I am about to place a vicegerent on earth,” they said: “Will You place on it one who will spread mischief and shed blood while we celebrate Your glory and extol Your holiness?” He said: “Surely, I know what you do not know.



Khilafah as an obligation of “Deen”

﴿وَعَدَ اللَّهُ الَّذِينَ آمَنُوا مِنْكُمْ وَعَمِلُوا الصَّالِحَاتِ لَيَسْتَخْلِفَنَّهُمْ فِي الْأَرْضِ كَمَا اسْتَخْلَفَ الَّذِينَ مِنْ قَبْلِهِمْ وَلَيُمَكِّنَنَّ لَهُمْ دِينَهُمُ الَّذِي ارْتَضَى لَهُمْ وَلَيُبَدِّلَنَّهُمْ مِنْ بَعْدِ خَوْفِهِمْ أَمْنًا يَعْبُدُونَنِي لَا يُشْرِكُونَ بِي شَيْئًا وَمَنْ كَفَرَ بَعْدَ ذَلِكَ فَأُولَئِكَ هُمُ الْفَاسِقُونَ﴾ سورة النور: 55.

“Allah has promised to those among you who believe and work righteous deeds that He will, of a surety, grant them in the land *khilafah* (authority) as He granted it to those before them; that He will establish in authority their *din* – the one which he has chosen for them; And that He will change (their state) after the fear in which they (lived) to one of security and peace: They will worship Me (alone) and not associate anyone with Me....”



Khilafat or vicegerency v/s kinship

Islamic state is not theocratic:

“By the word “vicegerency”, your mind should not turn towards the Divine Right of Kings, or to Papal authority.

According to the Qur'an, the vicegerency of Allah is not the exclusive birthright of any individual or clan or class of people, it is the collective right of all those who accept and admit Allah's absolute sovereignty over themselves and adopt the Divine Code, conveyed through the Prophet, as the law above all laws and regulations.

This concept of life makes the Islamic Khilafat a democracy, which in essence and fundamentals is anti-thesis of the theocratic, the monarchical and the Papal form of government, as also of the present-day Western secular democracy”.

Sayed Abul A'la Mawdudi, Islamic Law and Constitution, Lahore, Islamic Publication Ltd, 1980, p218-219.



Khilafat or vicegerency v/s kinship

Realization of an ethical order

﴿الَّذِينَ إِنْ مَكَّنَّاهُمْ فِي الْأَرْضِ أَقَامُوا الصَّلَاةَ وَآتَوُا الزَّكَاةَ وَأَمَرُوا بِالْمَعْرُوفِ وَنَهَوْا عَنِ الْمُنْكَرِ وَلِلَّهِ عَاقِبَةُ الْأُمُورِ﴾ سورة النور: 41.

“Those who, if We give them power (authority) in the land establish (system of) *salat*, pay *zakah*, enjoin *ma'ruf* (ethical behavior) and forbid *munkar* (indecentcy, evil and wrong)”

Realization of Justice

﴿وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ﴾ سورة النساء: 58.

“...and if you judge between mankind (annas), that you judge justly (tahkumu bil 'adl)”.



Khilafat or vicegerency v/s kinship

Realization of culture of Competence and not hereditary succession or dictatorship

﴿إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ إِنَّ اللَّهَ نِعِمَّا يَعِظُكُمْ بِهِ إِنَّ اللَّهَ كَانَ سَمِيعًا
بَصِيرًا﴾ سورة النساء: 58

“Allah does command you to render back your trusts (*amanat*) to those whom they are due (*illa-ahliha*) and when you judge between them that you judge with justice (*‘adl*)”.

- Fulfilment of Trusts
- Lead and judge with just
- provide obedience to just rulers

قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: إِذَا وُسِّدَ الْأَمْرُ إِلَىٰ غَيْرِ أَهْلِهِ فَانْتَظِرِ السَّاعَةَ. صحيح البخاري (59)

"When the government is entrusted to the undeserving people, then wait for the Last Day."



Khilafat or vicegerency v/s kinship

Qualification of those in authority

- 1) Persons with faith and trust in Allah's Book and finality of the Prophet (Peace be upon him).
- 2) Observe '*adl* in all matters
- 3) Literate, knowledgeable and intelligent.
- 4) Men of integrity, trustworthy of public responsibility.
- 5) Loyal to constitution of the State



1. Shura as binding for all

﴿وَالَّذِينَ اسْتَجَابُوا لِرَبِّهِمْ وَأَقَامُوا الصَّلَاةَ وَأَمْرُهُمْ شُورَى بَيْنَهُمْ وَمِمَّا رَزَقْنَاهُمْ يُنْفِقُونَ﴾ سورة الشورى: 38.

Who obey their Lord and establish Prayer; who conduct their affairs by consultation and spend out of what We have bestowed upon them.

﴿وَشَاوِرْهُمْ فِي الْأَمْرِ﴾ سورة آل عمران: 159

And take counsel from them in matters of importance.



2.Shura as binding for all

Principles of Consultation:

1. Full freedom to express opinion in collective affairs and to choose the right advisors.
2. People's consent should be free from coercion, temptation, deception, and fraud.
3. Advisers must be pious and wise people, who care about nation's concern.
4. The advisers should give opinion according to their knowledge and faith and conscience and they should have full freedom of such expression of opinion.
5. The advice that is given by a consensus of the advisers, or which has the support of the majority of the people, should be accepted.



1.Responsibility of Islamic State

State is responsible for implementation of Islamic legal, economic, social and educational system

1. Preservation and promotion of *din*.
2. Enforcement of *shari'ah* law, observance of justice and conflict resolution.
3. Security of territory and safety of the people.
4. Enforcement of punishments prescribed by *shari'ah* and safeguarding of *hudud*.
5. Jihad against those who oppose Islamic cause and make disturbance and oppression.

al-Mawardi, *al-Ahkam al-Sultaniyah*, Cairo, 1960, P 15-16; Abu Ya'la al-Farra'al-Hanbali, *al-Ahkam al-Sultaniyah* Cairo, 1938, P11-12. Quoted in Muhammad S. El-Awa, *on the political system of the Islamic State*, Indianapolis, USA American Trust Publications, 1980, p77



2. Responsibility of Islamic State

6. Levying of taxes, collection of *zakah* and *sadaqat* and their distribution.
7. Financial regulations and policies, payment of salaries from the treasury.
8. Appointment of competent person as managers, judges, law enforcement officers etc
9. Supervision of public affairs and protection of interest of society.

al-Mawardi, *al-Ahkam al-Sultaniyah*, Cairo, 1960, P 15-16; Abu Ya'la al-Farra'al-Hanbali, *al-Ahkam al-Sultaniyah* Cairo, 1938, P11-12. Quoted in Muhammad S. El-Awa, *on the political system of the Islamic State*, Indianapolis, USA American Trust Publications, 1980, p77



Concept of welfare state

قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: فَأَعْلَمَهُمْ أَنَّ اللَّهَ افْتَرَضَ عَلَيْهِمْ صَدَقَةً فِي أَمْوَالِهِمْ تُوْخَذُ مِنْ أَغْنِيَائِهِمْ وَتُرَدُّ عَلَى فُقَرَائِهِمْ. متفق عليه. (Sahih Bukhari-Hadith-1395)

Tell them that Allah has made the payment of Zakat obligatory upon them. It should be collected from their rich and distributed among their poor.

﴿وَفِي أَمْوَالِهِمْ حَقٌّ لِّلسَّائِلِ وَالْمَحْرُومِ﴾ سورة الذاريات: 19.

And in their wealth, there was a rightful share for him who would ask and for the destitute.

قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: أَنَا أَوْلَى بِالْمُؤْمِنِينَ مِنْ أَنْفُسِهِمْ، فَمَنْ تُوْفِّيَ مِنَ الْمُؤْمِنِينَ فَتَرَكَ دَيْنًا، فَعَلَيْ قَضَائِهِ، وَمَنْ تَرَكَ مَالًا فَلِوَرَثَتِهِ. صحيح البخاري. (Hadith- 2298)

"I am more rightful than other believers to be the guardian of the believers, so if a Muslim dies while in debt, I am responsible for the repayment of his debt, and whoever leaves wealth (after his death) it will belong to his heirs. "



Responsibility of Islamic Welfare State

Islamic Welfare state is responsible for the following;

- 1.To eradicate poverty and to create conditions for full employment and a high rate of growth
- 2.To promote stability in the real value of money
- 3.To maintain law and order
- 4.To ensure social and economic justice
- 5.To arrange social security and foster equitable distribution of income and wealth
- 6.To harmonize international relations and ensure national defense



1. Legal equality (*‘adl*) and duties of Citizens

إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَانِ وَإِيتَاءِ ذِي الْقُرْبَىٰ وَيَنْهَىٰ عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ وَالْبَغْيِ يَعِظُكُمْ لَعَلَّكُمْ تَذَكَّرُونَ.
(سورة النحل, آيت: 90)

Indeed, Allah commands justice, grace, as well as courtesy to close relatives. He forbids indecency, wickedness, and aggression. He instructs you so perhaps you will be mindful.

﴿لَقَدْ أَرْسَلْنَا رُسُلَنَا بِالْبَيِّنَاتِ وَأَنْزَلْنَا مَعَهُمُ الْكِتَابَ وَالْمِيزَانَ لِيَقُومَ النَّاسُ بِالْقِسْطِ﴾ سورة الحديد: 25

Indeed, We sent Our Messengers with Clear Signs, and sent down with them the Book and the Balance that people may uphold justice.



2. Legal equality (*‘adl*) and duties of Citizens

عَنْ عُبَادَةَ بْنِ الصَّامِتِ قَالَ بَايَعَنَا رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى السَّمْعِ وَالطَّاعَةِ فِي الْيُسْرِ وَالْعُسْرِ، وَالْمَنْشَطِ وَالْمَكْرَهِ، وَأَنْ لَا نُنَازِعَ الْأَمْرَ أَهْلَهُ، وَأَنْ نَقُومَ بِالْحَقِّ حَيْثُ كُنَّا لَا نَخَافُ لَوْمَةَ لَائِمٍ. سنن النسائي (4149)

"We pledged to the Messenger of Allah to hear and obey during our hardship and our ease, when we felt energetic and when we felt tired, that we would not contend with the orders of whomever was entrusted with it, that we would stand for justice wherever we may be, and that we would not fear the blame of any blamer for the sake of Allah.



1. Rights of citizen in an Islamic state

1. Security of person
2. Freedom of and conscience, practice of *din*
3. Right to justice and equity
- 4 .Right to protection of reason.
5. Security of property



2. Rights of citizen in an Islamic state

6. Protection of honor
7. Right to enjoy good and forbid evil
8. Freedom of association
9. Protection against wrongfully hurting religious feelings,
or desecration of place and persons.
10. Equal treatment under law
11. The right of destitute and needy to be provided with basic necessities.



Obligations of citizens

- Acceptance of writ of state
- To be law abiding citizens
- Support in all rightful activities of state
- Prepared to sacrifice their Life and resources in defense of state.



Human Rights in Islamic State

1. Protection of Life, wealth and respect
2. Self-Freedom: No innocent can be put behind the bars without a solid reason.
3. Freedom of Expression
4. Equality in law: All the citizens Muslims & Non-Muslims.
5. Social Equality
6. Provision of Justice
7. Right of Criticism
8. Right of Organization



SUMMARY

Islam is a religion which wants pure Islamic state under the umbrella of its teachings. There is sovereignty only deserved to Allah, the Creator of universe and accepted him the law-giver. As the Holy Quran and the Sunah of the Prophet Muhammad (peace be upon him) are the supreme law of the state. Shura and Consultation is one of the very important pillar of Islamic state. It maintains supremacy of shari'ah and Allah's sovereignty. Ideological state to be run only by those who accept its basic ideology and principles and are committed to implementing shari'ah. It is shurawi, makes effort to build consensus ('ijma) and find new solutions for emerging problems through ijtihaad. It does not discriminate on the grounds of color, race, language or ethnicity and upholds its ideology. It creates a system based on ethical behavior and obedience to Allah, run by Allah-fearing individuals who have full sense of their responsibility and accountability. It creates a balance between the individual, society and state. However, public good and welfare is one of its primary objectives.



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